

Tentative Rulings for August 26, 2026 Department 7

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 7 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

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1.

CASE #	CASE NAME	HEARING NAME
CVRI2203422	JUAREZ vs SAN BERNARDINO CITY UNIFIED SCHOOL DISTRICT	MOTION TO CONTINUE ON 2ND AMENDED COMPLAINT

Tentative Ruling:

Defendant San Bernardino City Unified School District's ("Defendant" or "District") Motion to Continue is denied.

This action was initiated nearly four years ago when Plaintiffs filed their Complaint for Damages on August 16, 2022. Following extensive law and motion practice, including a demurrer that was sustained by this Court and subsequently reversed and remanded on appeal, Defendant filed its response to the pleading on April 4, 2025. On February 26, 2026, this Court held a trial-setting conference. All parties were present, and they mutually agreed to a firm trial date of October 9, 2026.

Prior to the trial-setting conference, on February 9, 2026, Defendant served Notices of Taking Deposition of each of the four Plaintiffs, scheduling the depositions for March 11, 12, and 13, 2026. On March 4, 2026, Plaintiffs' counsel, Eduardo Olivo, Esq., filed formal objections to the deposition notices on the grounds that the dates had been unilaterally selected and represented that he would meet and confer to provide alternative dates. Defendant's counsel followed up in writing on April 3 and April 9, 2026, requesting the rescheduled dates.

On April 9, 2026, Plaintiffs' counsel's office responded that Mr. Olivo was preparing for a federal trial and would not be available until the end of May 2026. This federal trial preparation and trial engagement spanned from approximately early April 2026 through the end of May 2026. On May 20, 2026, the parties executed and filed a Joint Stipulation to Continue Trial and Trial-Related Dates, requesting a continuance of the trial to April 2, 2027, on the grounds that Plaintiffs' counsel's unavailability had disrupted discovery. On June 17, 2026, this Court denied the parties' ex parte application and the joint stipulation, noting that trial dates are firm and a stipulation that good cause exists does not constitute good cause.

Following the Court's June 17, 2026 denial, Defendant's counsel sent written requests for deposition dates on June 17 and July 2, 2026. Receiving no response, Defendant unilaterally served deposition notices on July 11, 2026, setting the depositions of all four Plaintiffs for August 10, 11, and 12, 2026. Defendant filed the instant noticed Motion to Continue Trial on July 17, 2026.

To ensure the prompt and orderly disposition of civil cases, the dates assigned for trial are firm, and all parties and counsel must regard the trial date as certain under California Rules of Court, Rule 3.1332(a). Continuances of trials are highly disfavored in California, as articulated in California Rules of Court, Rule 3.1332(c) and affirmed by the Court of Appeal in *Reales Investment, LLC v. Johnson* (2020) 55 Cal.App.5th 463, 468.

This policy is mandated by the Trial Court Delay Reduction Act, which directs judges to commence trials on the scheduled date and to maintain a "firm, consistent policy against continuances, to the maximum extent possible and reasonable." (California Government Code Section 68607(f), (g).)

Accordingly, a trial court may grant a continuance only upon an affirmative showing of good cause requiring the delay, as set forth in California Rules of Court, Rule 3.1332(c). While the rule lists circumstances that may indicate good cause—such as the excused inability to obtain essential testimony despite diligent efforts under Rule 3.1332(c)(6)—each request must be considered on its own merits. Under California Rules of Court, Rule 3.1332(d), the Court must evaluate all relevant facts and circumstances, including the proximity of the trial date, any previous delay, the length of the requested continuance, the availability of alternative means, and the overall diligence of the parties.

Defendant's Claimed Excuse Consists of a Brief Fraction of the Case History and Fails to Demonstrate Diligence

Defendant's primary argument for good cause is that the federal trial engagement of Plaintiffs' counsel from early April 2026 to the end of May 2026 made it impossible to conduct the depositions of the four Plaintiffs. The Court finds this argument entirely unpersuasive. This litigation was initiated on August 16, 2022, and has been active for more than four years. The two-month period during which Plaintiffs' counsel was unavailable represents a minor fraction—only two months out of the entire forty-eight-month life of this case. To claim that a temporary, two-month scheduling conflict of opposing counsel during the spring of 2026 completely derailed Defendant's ability to prepare for an October 2026 trial date is an admission of a lack of overall diligence.

The purpose of the firm trial date policy is that parties must be proactive in managing their litigation timelines. Under California Rules of Court, Rule 3.1332(b), a party must seek a continuance as soon as reasonably practical once the necessity is discovered, and the court must strictly evaluate diligence. In *Zlotoff v. Tucker* (1984) 154 Cal.App.3d 988, 993-994, the court properly denied a continuance where the moving party failed to act with promptness and diligence upon learning of witness issues. Here, Defendant waited years to obtain the essential depositions. Even after the trial date was set on February 26, 2026, Defendant failed to secure alternative deposition dates in March, prior to the onset of Plaintiffs' counsel's federal conflict, or immediately upon his return in June. Diligent counsel does not allow a brief, two-month unavailability of opposing counsel to paralyze discovery in a mature, four-year-old case. The Court finds that Defendant's failure to complete depositions prior to the fall of 2026 is a product of its own lack of diligence throughout the life of this action.

Defendant further claims that the current trial date of October 9, 2026, and the corresponding fact discovery cutoff of September 9, 2026, under Code of Civil Procedure Section 204.020(a), make it "materially impossible" to prepare for trial. However, the record refutes this assertion. On July 11, 2026, Defendant unilaterally served Notices of Taking Deposition of all four Plaintiffs, scheduling them for August 10, 11, and 12, 2026. These scheduled depositions are set nearly two full months before

the trial date of October 9, 2026, and a full month before the close of fact discovery on September 9, 2026.

The Court finds that the active, diligent exercise of professionalism and cooperation by counsel can easily accomplish these four depositions and any necessary Independent Medical Examinations (IMEs) within the remaining period. There are nearly sixty days between the scheduled August depositions and the trial date, which is more than sufficient time to obtain transcripts, consult expert witnesses, and finalize trial preparations. Defendant's assertion that it is foreclosed from preparing its defense is overstated and does not stand up to scrutiny. If Defendant's counsel operates with the requisite diligence and professional urgency required by a firm trial setting, all necessary discovery can and will be completed on the current schedule. To grant a seven-month continuance under these circumstances would reward passive litigation and violate the Court's commitment to dispose of general civil matters within two years of filing, as recommended by Standards of Judicial Administration, Section 2.2(d). For the foregoing reasons, the Court finds that Defendant San Bernardino City Unified School District has failed to establish good cause or demonstrate that it acted with the necessary diligence to justify a trial continuance.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2305126	I-10 LOGISTICS OWNER, LLC vs ALBUS & ASSOCIATES	MOTION FOR LEAVE TO AMEND CROSS COMPLAINT

Tentative Ruling:

Defendant and Cross-Complainant Albus & Associates ("Albus") for Leave to File a First Amended Cross-Complaint is denied.

Plaintiff I-10 Logistics commenced this action on September 28, 2023, by filing a Complaint against Albus asserting causes of action for professional negligence, negligence, breach of contract, and breach of express warranty arising from Albus's geotechnical services on the San Gorgonio Crossing/Cherry Valley project (*Complaint of Plaintiff I-10 Logistics Owner, LLC, Case No. CVRI2305126*). Attached to and incorporated within Plaintiff's Complaint as Exhibit 1 was the written Services Agreement (the "Services Contract") executed by I-10 Logistics and Albus on or about April 8, 2021 (*Complaint of Plaintiff I-10 Logistics Owner, LLC, Paragraph 7 and Exhibit 1*). Under Exhibit A - Conditions, Page 21 of the Services Contract, the contract contains an express limitation of liability provision limiting Albus's total aggregate liability to the greater of \$50,000.00 or Albus's total fee for services rendered on the project (*Complaint of Plaintiff I-10 Logistics Owner, LLC, Services Agreement, Page 21; Albus & Associates' Notice of Motion and Motion for Leave to File First Amended Cross-Complaint, Seymour Decl., Exh. A*). The total contract sum paid to Albus exceeded \$1,000,000.00 (*Complaint of Plaintiff I-10 Logistics Owner, LLC, Paragraph 8; Albus & Associates' Notice of Motion and Motion for Leave, Memorandum of Points and Authorities, Section II.A*).

On January 25, 2024, Albus filed its original Cross-Complaint against Albert A. Webb Associates and Roes 1 through 25, asserting claims for implied indemnity, comparative contribution, total equitable indemnity, and declaratory relief (*Cross-Complaint of Albus & Associates, Case No. CVRI2305126*). On February 14, 2025, Albus filed an amendment substituting KPRS Construction Services, Inc. for Roe 1 (*Cross-Complaint of Albus & Associates, Paragraph 4*).

On June 9, 2026, Albus conducted the remote deposition of David Graves, the Person Most Qualified (PMQ) of I-10 Logistics, wherein the limitation of liability provision was addressed (*Albus & Associates' Notice of Motion and Motion for Leave, Seymour Decl., Paragraph 6, Exhibit C; David Graves Deposition, Vol. I*).

On June 29, 2026, Albus filed the instant Motion for Leave to File a First Amended Cross-Complaint (*Albus & Associates' Notice of Motion and Motion for Leave to File First Amended Cross-Complaint, Case No. CVRI2305126*). Albus seeks to add Plaintiff I-10 Logistics as a Cross-Defendant and assert a fifth cause of action for "Declaratory Relief – Limitation of Liability" (*Proposed First Amended Cross-Complaint of Albus & Associates, Case No. CVRI2305126*). This proposed cause of action seeks a judicial declaration that the limitation of liability provision in the Services Contract is valid and enforceable, contractually capping any recovery by I-10 Logistics against Albus to the greater of \$50,000.00 or Albus's total fee (*Proposed First Amended Cross-Complaint, Paragraphs 28-31*). Trial in this matter is scheduled to commence on October 2, 2026 (*Albus & Associates' Notice of Motion and Motion for Leave to File First Amended Cross-Complaint*).

Lack of Necessity and Utility of the Proposed Declaratory Relief Cause of Action (CCP § 1061)

Under California Code of Civil Procedure section 1061, the court may refuse to exercise its power to grant declaratory relief if its determination is not necessary or proper under the circumstances. California courts routinely deny leave to amend to add a cause of action for declaratory relief when the requested declaration merely mirrors issues already fully framed and capable of complete resolution through existing claims or affirmative defenses (such as seeking a declaration that a contract was not breached when the complaint already asserts a breach of contract claim). Because the declaratory relief adds no real utility to the lawsuit, denial of leave is appropriate.

In this case, the proposed declaratory relief cause of action does not introduce any new substantive controversy that cannot be fully adjudicated in the main action (*Albus & Associates' Notice of Motion and Motion for Leave, Memorandum of Points and Authorities, Section IV.A*). Plaintiff I-10 Logistics has already asserted contract and tort claims arising directly from Albus's geotechnical services under the contract (*Complaint of Plaintiff I-10 Logistics Owner, LLC, Case No. CVRI2305126*). Albus's defense regarding the contractual limitation of liability is a contract-based limitation that can be fully raised, litigated, and resolved within the context of the existing breach of contract and negligence claims and Albus's affirmative defenses (*Albus & Associates' Notice of Motion and Motion for Leave, Memorandum of Points and Authorities, Section IV.B*).

Because the Services Contract is already attached to Plaintiff's Complaint, Albus's proposed declaratory relief claim adds no real utility to this lawsuit (*Complaint of Plaintiff I-10 Logistics Owner, LLC, Exhibit 1; Albus & Associates' Notice of Motion and Motion for Leave, Seymour Decl., Exh. A*). Consequently, under Code of Civil Procedure section 1061, the Court declines to exercise its discretionary power to allow a redundant claim.

Undue and Unexplained Delay Near Trial

While Code of Civil Procedure sections 473(a)(1) and 576 establish a policy of great liberality in permitting amendments in the furtherance of justice, this policy is balanced against the requirement that a party act with diligence (*General legal guidelines on leave to amend, Leave to amend.docx; California Code of Civil Procedure sections 473(a)(1), 576*). An order allowing or denying an amendment is entrusted to the sound discretion of the trial court, and an unwarranted delay in presenting an amendment may, by itself, be a valid reason for denial (*Duchrow v. Forrest (2013) 215 Cal.App.4th 1359, 1377; Miles v. City of Los Angeles (2020) 56 Cal.App.5th 728, 739*). Where a proposed pleading is presented after an unexplained delay and on the eve of trial, the court may properly deny leave to amend (*Magpali v. Farmers Group, Inc. (1996) 48 Cal.App.4th 471, 486-487*).

The Court finds that Albus has unduly and unreasonably delayed seeking this amendment. This action was initiated in September 2023, and Albus filed its original Cross-Complaint in January 2024. Albus did not file the instant motion until June 29, 2026—over two years after its original cross-complaint was filed, and nearly three years after the lawsuit began.

Albus has offered no reasonable explanation for this extraordinary delay. The written Services Contract containing the limitation of liability provision is a contract to which Albus was a direct party, executed in April 2021, and has been in Albus's possession the entire time. Moreover, the contract was attached as Exhibit 1 to I-10's Complaint in September 2023. Albus did not require the deposition of David Graves on June 9, 2026, to "discover" the limitation of liability clause, as the contract terms were known to Albus from the very inception of the contract.

Trial is set for October 2, 2026, which is in a little over a month from the date of this hearing. Allowing Albus to file a new cross-claim against the Plaintiff at this late stage of litigation would disrupt the trial schedule, require additional pleading practice, and increase trial preparation costs. Delaying trial or increasing the litigation burden on the eve of trial constitutes substantial prejudice that justifies the denial of leave to amend (*Magpali v. Farmers Group, Inc., supra, 48 Cal.App.4th at 486-488*).

Procedural Requirements of California Rules of Court, Rule 3.1324

Under California Rules of Court, Rule 3.1324(b), a motion for leave to amend a pleading must be accompanied by a supporting declaration that specifies:

1. The purpose and effect of the proposed amendments;

2. Why the proposed amendments are necessary and proper;
3. When the facts giving rise to the proposed amendment were discovered; and
4. The reasons why the request for amendment was not made earlier. (*California Rules of Court, Rule 3.1324(b)*).

Failure to satisfy these procedural requirements offers independent and sufficient grounds for the denial of a motion for leave to amend.

The Court has reviewed the supporting Declaration of Matthew C. Seymour and finds that it fails to satisfy the mandatory criteria of California Rules of Court, Rule 3.1324(b) (*Albus & Associates' Notice of Motion and Motion for Leave, Seymour Decl.*). While the declaration outlines the general purpose and effect of adding the limitation of liability claim, it is completely silent as to when the "facts" giving rise to the proposed amendment were first discovered (*Albus & Associates' Notice of Motion and Motion for Leave, Seymour Decl.*). Crucially, the declaration fails to provide any reasonable explanation as to why the request for amendment was not made earlier during the preceding two and a half years of active litigation (*Albus & Associates' Notice of Motion and Motion for Leave, Seymour Decl.*). Because the contract has been known and available to Albus since April 2021, the procedural requirements of Rule 3.1324(b) cannot be satisfied. This procedural deficiency constitutes an independent basis for denying the motion. For the reasons set forth above, the Court finds that the proposed amendment adds no real utility to the action, is sought after an unreasonable and prejudicial delay on the eve of trial, and fails to comply with the mandatory procedural requirements of California Rules of Court, Rule 3.1324.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2400857	A. vs MIMMS	MOTION TO STRIKE 3RD AMENDED COMPLAINT

Tentative Ruling:

Defendant Universal Protection Service, LP.'s Motion to Strike is granted without leave to amend.

The court may, upon a motion made pursuant to CCP §435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP § 436.) On a motion to strike, as with a demurrer, "the court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged." (*Washington Int'l Ins. Co. v. Superior Court* (1998) 62 Cal. App. 4th 981, 984, n. 2.) A motion to strike is the proper vehicle to attack a punitive damages claim where the facts alleged do not rise to the level of fraud,

malice or oppression. (CCP §§ 435-436; *Truman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.)

REQUEST FOR JUDICIAL NOTICE

Defendant asks the Court to take judicial notice of a June 15, 2026 tentative ruling as to Defendant's Motion to Strike Portions of Plaintiff's Second Amended Complaint, which became the ruling of the Court the following day on June 16, 2026. Since the Court adopted the tentative ruling as its final ruling on the motion, the Court can take judicial notice of it. (RNJ, Ex. 1.) (Ev. Code §§ 452, 453.)

MERITS

It is undisputed that the motion contains a typographical error as to two of the six portions of the TAC which are requested to be stricken:

First, Plaintiff references Item 1 – Page 7, Paragraph 25. Indeed, Plaintiff is correct. While UPS' quoted portion of this paragraph is largely correct, Plaintiff has properly pointed out that the final 6 words appear to have been removed from the TAC. Specifically, the allegation is the same except that now Plaintiff does not allege that the same "demonstrate[es] conscious disregard for resident safety." Given that Plaintiff acknowledges removal of that portion of her allegation, *UPS withdraws its request to strike the remainder of that paragraph.*

Second, Plaintiff references Item 2 – Page 9, Paragraph 34. The quote contained in UPS's Motion is as follows:

"Defendants' conduct as alleged herein was despicable and carried out with willful and conscious disregard for the rights and safety of Plaintiff, warranting an award of punitive damages under Civil Code § 3294. These decisions were made, authorized, or ratified by officers, directors, or managing agents of said corporate Defendants with advance knowledge and conscious disregard for the safety of Plaintiff and other minor residents, in violation of Civil 25 Code § 3294(b)."

Plaintiff points out that the TAC, instead, is phrased as:

"Defendants' conduct as alleged herein was despicable and carried out with willful and conscious disregard of the rights and safety of Plaintiff M.A. and other minor residents of Canyon Lake, warranting an award of punitive damages under Civil Code § 3294. The decisions described herein were made, authorized, or ratified by officers, directors, or managing agents of the corporate Defendants, in willful and conscious disregard of the safety of Plaintiff M.A. and other minor residents, within the meaning of Civil Code § 3294(b)."

However, as noted by UPS, the only substantive difference between the two is that the SAC alleged "advanced knowledge" whereas the TAC does not. However, the

substantive arguments to strike remain the same, rendering the typographical error inconsequential.

ACTUAL KNOWLEDGE

Plaintiff's highlights an allegation that Mimms' ineligible for rehire designation was immediately visible in his WinTeam personnel file. However, Plaintiff's specific allegation that Mimms' WinTeam personnel file was the "identical file accessed by [UPS's] management when processing his re-absorption into the workforce" does not, as Plaintiff argues, adequately allege that this designation was "open in front of [UPS] personnel" nor that any individual ever saw it. Plaintiff's allegation is that UPS re-absorbed Mimms "without reviewing its own WinTeam records." This is an allegation that UPS had *constructive knowledge*, or should have known, that Mimms was designated ineligible for rehire, which is relevant as to negligence but insufficient to establish conscious disregard.

To satisfy the punitive damage pleading requirements under section 3294, a plaintiff must plead specific facts which detail, at a bare minimum, what the defendant knew about the alleged acts that harmed plaintiff, how the defendant knew it, and the manner in which the defendant consciously disregarded plaintiff's rights or safety despite its knowledge. (*Foy v. Greenblott* (1983) 141 Cal.App.3d 1; *Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864; see *G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22 [striking punitive damages that were mere conclusions of knowledge, conscious disregard, malice and oppression without supporting facts].)

As noted by UPS, Plaintiff cites *Penner v. Falk* (1984) 153 Cal.App.3d 858, 867, to support the argument that merely alleging knowledge, the power to act on that knowledge, and a failure to act are enough to support a claim for punitive damages. However, in *Lackner v. North* (2006) 135 Cal.App.4th 1188, the Court specifically stated that, in order to justify an award of punitive damages, a plaintiff must establish that the defendant "was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences." (Id. at 1211.) (citations omitted.) Awareness, in other words, is a subjective state, not a constructive one. *Penner* is wholly distinct from the circumstances presented by Plaintiff's TAC. In *Penner*, the Court specifically noted that: "Because Defendants were aware of (1) crimes in the apartment building and apartments thereof which were caused, invited, encouraged, and/or permitted by the conditions of the premises, (2) tenant reports of crime on the premises, (3) tenant complaints regarding the unsecure and inadequate conditions on the premises which permitted free access to the premises and said criminal activity, (4) express tenant requests for and the obvious need to repair, change, and/or take corrective measures with regard to the inadequate security conditions of the premises, including free access to the premises, and (5) the nature of the neighborhood itself, including the occurrence of criminal activity therein; defendants knew or, in the exercise of reasonable care, should have known that the conditions on the premises made it foreseeable that criminals and intruders would gain access to and commit crimes on said premises, attack tenants, and/or future crime would occur on the premises exposing tenants to the foreseeable unreasonable risks of harm which constituted a threat to the safety of any and all persons on or using said premises, thus

constituting special circumstances giving rise to a duty of care on the part of Defendants, and each of them, to take appropriate security measures for the protection of their business invitees and tenants, including plaintiff.” (Id. at 863-864.)

Ultimately, to establish advanced knowledge of “unfitness” under Civil Code section 3294(b), that unfitness must bear some rational connection to the type of harm that ultimately occurred. Here, however, Plaintiff has not alleged a single fact that would create any knowledge of a risk of sexual assault on the part of Mimms. The TAC still does not allege the nature of the 2019 policy violation that led to termination. An employee who was terminated for things such as tardiness, uniform violations, or administrative infractions, would not thereby be rendered “unfit” in a manner that would put an employer on notice of a risk of sexual predation. Without alleging the specific basis for the 2019 termination, let alone that UPS knew the specific basis for said termination, Plaintiff asks the Court to infer that any prior termination, for any reason, constitutes advanced knowledge of unfitness for purposes of punitive damages — a standard no California court has adopted.

Plaintiff also cites to *Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1160 to establish that a failure to place “reports of misconduct” in an employee’s personnel file “so as to warn future supervisors of that conduct” in and of itself demonstrates a conscious disregard for the rights and safety of others. However, in *Weeks*, the Court was specifically addressing a scenario where the employer was “well aware that [Defendant] was likely to create a hostile work environment for women” and then, “consistently failed to take measures reasonably designed to protect women from his abuse. (Id.) In other words, the “reports” were of the exact same type of misconduct (sexual harassment) as was at issue in that case.

Here, there is simply no allegation that anything in the 2019 termination, or any of the subsequent disciplinary record, related in any way whatsoever to sexual misconduct, interactions with minors, or predatory behavior. Indeed, there is not even an allegation that Plaintiff or her family raised any complaint during Mimms’ employment.

Plaintiff relies on a premise that if an employee receives discipline for attendance and a bad attitude, allowing that individual to remain employed as a security officer demonstrates unfitness for the purposes of punitive damages in a sexual assault case. Per the above, this is not the law. As alleged, absent specific knowledge alleged on the part of UPS, Plaintiff is seeking punitive damages based on allegations of negligence which is insufficient to justify an award of punitive damages.

FAILURE TO REVOKE ACCESS

Plaintiff contends that the allegation that, after Mimms’ termination, UPS “took no steps to revoke his access,” created a foreseeable risk that residents would be harmed. However, there is no allegation that UPS could have prevented Mimms’ access to the property under the actual circumstances presented here. Plaintiff has not alleged (nor could she) that Mimms’ continued access was under that granted to him by virtue of his employment. Further, Plaintiff has not alleged that UPS did not revoke his employment access to the property, nor that at any time after his termination Mimms accessed the

property wearing a UPS uniform or purporting to be an employed security guard for the property. Instead, reading the allegations, Plaintiff has alleged that Mimms retained an unspecified means of access to the property which UPS did not revoke. Presuming Plaintiff is alleging that it was UPS who allowed Plaintiff access, and not a resident, Plaintiff is at best alleging an administrative failure to deactivate an access credential. Absent any allegation that UPS knew Mimms was utilizing that access to harm anyone, the allegation, at most, goes to negligence, not despicable conduct for purposes of punitive damages.

CORPORATE RESPONSIBILITY

To state a claim for exemplary damages against a business entity for the acts of its employees, a plaintiff must allege the company's: (1) "advance knowledge of the unfitness of the employee," (2) "authoriz[ation] or ratification of the wrongful conduct," or (3) "personal guilt of oppression, fraud, or malice." (Civ. Code § 3294(b).) As set forth above, Plaintiff has failed to allege advanced knowledge on the part of UPS.

Plaintiff's Opposition essentially conceded that there is no factual allegation that would support punitive damages for oppression, fraud, or malice on the part of an officer, director or managing agent of UPS because Plaintiff cannot identify who that individual would be. This is not a peripheral detail but, instead, the entirety of the section 3294(b) corporate liability theory.

The TAC names Kiet Phan as "Director of Operations" but does not allege he personally made, authorized, or ratified the deployment decision as to Mimms, nor that he had any knowledge of Mimms' history. Instead, Plaintiff argues that alleging "operations executives" possessing "substantial discretionary authority" established a policy of deploying re-absorbed personnel without reviewing their WinTeam records. As noted by Defendant UPS, this is a legal conclusion dressed up in organizational-chart language. Under *White v. Ultramar* (1999) 21 Cal.4th 563, 577, the question is whether a specific individual exercised substantial independent authority and not whether a generic category of unnamed executives theoretically could have. Plaintiff merely alleging a policy vacuum and attributing it to unidentified "executives" – on information and belief alone – cannot satisfy section 3294(b). Plaintiff concedes this point by citing to *Scannell v. County of Riverside* (1984) 152 Cal.App.3d 596, in that, while there is no subsequent appellate history in that case as Plaintiff represents, the general demurrer was overturned but the motion to strike allegations of exemplary damages was granted. (Id at 617.)

Further, Plaintiff has failed to confront the Court's prior ruling on UPS' previous Motion to Strike which found that "there cannot be any argument that [UPS] could repudiate the conduct of Defendant Mimms because, at the time that conduct was discovered by Allied, Mimms had not been an employee for many months and had already been criminally charged." Plaintiff again falls back on an argument that UPS was required to conduct some unspecified "investigation" of an employee who had long since been terminated and who was already in police custody absent being found to have ratified that alleged conduct. Defendant UPS is right that this is simply counter to the English

language and to law. As pointed out by the Court, no such argument can be reasonably made, and Plaintiff's Opposition proves the point.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2402579	ZMILY vs ZMILY	MOTION TO QUASH DEPOSITION SUBPOENAS

Tentative Ruling: Appearances required.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2600770	SINGH vs UNIVERSAL PROTECTION SERVICE LP	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

CMC and this Hearing is continued to 1026/26 as Plaintiff requested, and the court agrees, for the opportunity to do limited discovery regarding the execution of the arbitration agreement.

The court must grant a petition to compel arbitration unless it finds either: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP §1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.)

The petition to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (Cal. R. Ct. 3.1330; see *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–219.) “[U]nder this rule, unless there is a dispute over authenticity, it is sufficient for a party moving to compel arbitration to recite the terms of the governing provision.” (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.) A petitioner is not required to authenticate the respondent's signature on an arbitration agreement as a preliminary matter in the moving papers and is only required to do so if the signature is challenged. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846.)

Defendant has provided an arbitration agreement it contends is electronically signed by Plaintiff. The arbitration agreement is between Plaintiff and Defendant. It applies to all claims that Plaintiff may have against Defendant and Defendant may have against Plaintiff, which could be brought in a court of law, unless otherwise set forth in the

arbitration agreement. (California Arbitration Agreement (Revised: April 13, 2022), ¶ 2.) The scope of the arbitration agreement would cover Plaintiff's claims.

Plaintiff challenges the authenticity of the electronic signature. Plaintiff contends that he does not recall signing the agreement. (Declaration of Makhan Singh, ¶¶ 5-6.) This is sufficient to meet Plaintiff's burden when an electronic signature is involved and requires Defendant to prove by a preponderance of the evidence that the electronic signature belonged to Plaintiff. (*Ruiz, supra*, 232 Cal.App.4th at 846; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 167.) Defendant argues that more than Plaintiff's failure to recall is needed to meet his burden of proof. However, binding California authority indicates that this evidence is sufficient when an electronic signature is involved. (*Id.*)

Under Civil Code § 1633.9(a), "An electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable." "[A] party may establish that the electronic signature was 'the act of the person' by presenting evidence that a unique login and password known only to that person was required to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions." (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 545.) In *Ruiz, supra* 232 Cal.App.4th at 843-846, the court found that a generic assertion alone that the electronic signature belonged to the plaintiff was not sufficient.

In the moving documents, Defendant provides a declaration from Kelly Jacobs. She is the Director of Human Resources – Southwest Region for Defendant. (Declaration of Kelly Jacobs, ¶ 1.) Ms. Jacobs provides what her current title is. However, she does not indicate how long she has been working for Defendant. She states that she is familiar with iCIMS and the way Defendant onboards new employees and presents new hire paperwork. (*Id.* at ¶ 7.) She provides that when an individual applies for a position with Defendant, they must complete onboarding process before the employment relationship with Defendant is formally begins. (*Id.* at ¶ 8.) She states that when Plaintiff was rehired on August 3, 2022, he used the electronic onboarding system called iCIMS system to complete his onboarding process, including executing the arbitration agreement. (*Id.* at ¶ 9.) She states that the system is password protected. (*Id.* at ¶ 9.) Ms. Jacobs states that the Human Resources Coordinator at the region's office emails a link from iCIMS to potential new employees' email addresses, which are provided to the coordinator by the potential new employees. (*Id.* at ¶ 9.a.) The new employees must click on the link and enter their unique username and password, which is created at the time they applied for the position. (*Id.* at ¶ 9.b.) If a new employee forgets their unique password, only they can create a new password by using their personal emails address. (*Id.*) While some of Defendant's human resources employees have access to iCIMS accounts, they only have the ability to view and print completed onboarding documents in "read-only" mode. (*Id.*) She states that only a potential new employee may sign onboarding documents by using their correct username and unique password. (*Id.* at ¶ 9.d.) She provides that the electronic onboarding process cannot be completed until the employee signs all

onboarding forms, which includes the arbitration agreement. (*Id.*) Ms. Jacob provides that she has reviewed Plaintiff's onboarding records and found that he completed the onboarding process in August of 2022. (*Id.* at ¶ 14.)

Plaintiff contends that he was first hired by Defendant in May 2015. (Declaration of Makhan Singh, ¶ 3.) He contends that he was rehired in approximately 2018 and was employed by Defendant until September 2025. (*Id.* at ¶¶ 3-4.) Plaintiff contends that he began working for Defendant years before August 2022. (*Id.* at ¶ 28.) He states he does not remember reviewing documents or electronically signing them on August 3, 2022. (*Id.* at ¶¶ 5-6.) Plaintiff does not deny that he completed electronic records for Defendant at some point in time, but it appears he did this when he was hired years before 2022. (*Id.* at ¶ 10.) Defendant contends that Plaintiff signed the arbitration agreement as part of his onboarding process in August 2022.

Unconscionability:

Plaintiffs contend the agreement is unconscionable. "Unconscionable arbitration agreements are not enforceable." (*Wherry v. Award, Inc.* (2011) 192 Cal.App.4th 1242, 1245.) "To be voided on this ground, the agreement must be both procedurally and substantively unconscionable." (*Ibid.*) "But they need not be present to the same degree." (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 (*Armendariz*)). Rather, the court invokes a "sliding scale" to determine unconscionability: "The more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (*Ibid.*) "The burden of proving unconscionability rests upon the party asserting it." (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126.) Unconscionability is a question of law. (*Malone v. Superior Court* (2014) 226 Cal.App.4th 1551, 1562.)

Procedural unconscionability may be proven by showing of oppression which is present when a party is given no meaningful opportunity to negotiate the terms of the contract which is presented on a take-it-or-leave-it basis. (*Wherry v. Award, Inc., supra*, 192 Cal.App.4th at 1246.)

"Substantive unconscionability addresses the fairness of the terms in dispute." (*Wherry v. Award, Inc., supra*, 192 Cal.App.4th at 1248.)

While Plaintiff asserts that the agreement is unconscionable and opposes Defendant's assertion that it is fair, he does nothing to support this argument. He fails to cite to applicable case law or clearly identify why the agreement is unconscionable. As such, this argument fails.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2602615	RIZK vs MIRA LOMA ASSOCIATES, LP	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

Defendants' Motion to Strike is denied.

The court may, upon a motion made pursuant to C.C.P. § 435, strike out any irrelevant, false, or improper matter inserted in any pleading; or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (C.C.P. § 436.) On a motion to strike, as with a demurrer, the court reads the allegations of the complaint as a whole, and accepts the facts alleged as true. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

A motion to strike is the proper vehicle to attack a claim for punitive damages where facts alleged do not rise to the level of fraud, malice or oppression. (*Truman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.) Plaintiffs may recover exemplary or punitive damages where it is proven that “the defendant has been guilty of oppression, fraud or malice.” (Civ. Code § 3294(a).)

“Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) “[A] conclusory characterization of defendant’s conduct as intentional, willful and fraudulent is a patently insufficient statement of ‘oppression, fraud, or malice, express or implied,’ within the meaning of section 3294.” (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) The pleading must contain factual allegations of wrongful motive, intent, or purpose. (*Cyrus v. Haveson* (1976) 65 Cal.App.3d 306, 317.)

As defined in the statute, “malice” is “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others,” while “oppression” is defined as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code § 3294(c)(1) and (2).) To support an award of punitive damages on the basis of conscious disregard of the safety of others, a plaintiff “must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (*Penner v. Falk* (1984) 153 Cal.App.3d 858, 867.) As used in the statute, “despicable conduct” is conduct that is “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (*American Airlines, Inc. v. Sheppard Mullin Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1050.)

Fraud means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury. (Civ. Code § 3294(c).) “A fraud cause seeking punitive damages need not include an allegation that

the fraud was motivated by the malicious desire to inflict injury upon the victim. The pleading of fraud is sufficient.” (*Stevens v. Superior Court* (1986) 180 Cal.App.3d 605, 610.)

A tenant’s habitability action against the owners for failure to remedy substandard living conditions may be sufficient to support a claim for punitive damages. (See, e.g., *Soiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 921 [failure to correct defective living conditions sufficient for punitive damages claim]; *Rivers v. Sassoon* (1995) 39 Cal.App.4th 1045, 1046 [affirming general, special, and punitive damages jury award for breach of the warranty of habitability, nuisance and other torts]; and *Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1055.)

Here, Plaintiffs allege sufficient facts to support their claim for punitive damages based on fraud, malice, and oppression. Specifically, Plaintiffs’ fifth cause of action sets forth a claim of fraud against Defendants. The elements of an action for fraud based on concealment are: (1) concealment or suppression of a material fact, (2) a duty to disclose the fact to the plaintiff, (3) intent to defraud, (4) plaintiff’s lack of knowledge and reliance, and (5) damage caused by the concealment. (*Lovejoy v. AT&T Corp.* (2004) 119 Cal.App.4th 151, 157-158.)

Although generally fraud must be pled with specificity, it is not realistic to require specificity when the claims are based on nondisclosure because it is impossible to show how and by what means something did not happen or when it never happened. (*Jones v. ConocoPhillips Co.* (2011) 198 Cal.App.4th 1187, 1199.) Accordingly, the requirement to plead with specificity “is relaxed when it is apparent from the allegations that the defendant necessarily possesses knowledge of the facts.” (*Quelimane Co. v. Steward Title Guaranty Co.* (1998) 19 Cal.4th 26, 47.) Moreover, an allegation of agency is an allegation of ultimate fact that must be accepted as true for purposes of ruling on a demurrer or motion to strike. (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 437; *Dones v. Life Insurance Company of North America* (2020) 55 Cal.App.5th 665, 685; *City of Industry v. City of Fillmore* (2011) 198 Cal.App.4th 191, 212.)

In the absence of a fiduciary relationship, a duty to disclose can arise when a defendant makes a representation but fails to disclose additional facts, which materially qualify the facts disclosed; when the facts are known or are accessible only to the defendant and the defendant knows they are not known or reasonably discoverable by the plaintiff; or when the defendant actively conceals discovery from the plaintiff. (*Warner Constr. Corp. v. L.A.* (1970) 2 Cal.3d 285, 294.)

Here, Plaintiffs allege that Defendants, through management employee Grace Cuautle and her staff, were aware of the bedbug infestations in Unit 4, but intentionally did not disclose the bedbugs to the Clarks when they assigned them to Unit 4, and further refused to show Unit 4 to the Clarks because Unit 4 was “not ready.” (Complaint, ¶¶ 119-121.) This is sufficient to plead nondisclosure of a material fact. Plaintiffs assert that they did not know of the bedbug infestations in Unit 4, which caused them to suffer extreme emotional distress, loss of personal property, and personal injuries. (Complaint, ¶¶ 127-128.) Accordingly, the allegations are sufficient at the pleading stage to demonstrate exclusive knowledge to impose a duty to disclose upon Defendants. As

such, Plaintiffs have stated sufficient facts to constitute a cause of action for fraud through concealment.

Although Defendants contend that Plaintiffs' claim for punitive damages are based on bare legal conclusions, as noted above, Plaintiffs have alleged sufficient facts to state a cause of action for fraud. Accordingly, no allegations of malicious motivation are required to support the claim for punitive damages. Nevertheless, Plaintiffs' allegations are sufficient to support a finding of malice and oppression under Civil Code § 3294(c)(1) and (2), because Defendants' alleged misconduct in intentionally concealing repeated bedbug infestations and exposing Plaintiffs to the bedbugs shows a willful and conscious disregard for the rights and safety of others.

7.

CASE #	CASE NAME	HEARING NAME
CVSW2310634	TEJEDA vs GSPUROHIT PROPERTIES, LLC	MOTION TO SET ASIDE DEFAULT ON CROSS-COMPLAINT

Tentative Ruling:

Cross-Defendant Main Capital Investments LLC's ("Main Capital") Motion to Set Aside Default pursuant to the mandatory provision of California Code of Civil Procedure Section 473(b) is granted. Cross Defendant Main Capital must file an Answer within 20 days of this ruling.

Court imposes a compensatory sanction against Main Capital's Counsel of \$960.00, payable within 30 days.

Relevant Chronology and Timeline of Events:

- September 9, 2025: Main Capital's prior counsel files a motion to be relieved
- November 5, 2025: The Court grants the motion to be relieved; formal order is entered on November 10, 2025, leaving Main Capital unrepresented
- January 22, 2026: First Status Hearing re: Retaining Counsel; individual defendants appear, and the Order to Show Cause (OSC) is continued
- March 19, 2026: Second Status Hearing; no appearance by Cross-Defendants, and the OSC is continued concurrent with the Trial Setting Conference (TSC)
- May 4, 2026: Third Status Hearing; Janet Tejeda appears, reports difficulty retaining counsel for the corporate entity, and the OSC is continued to June 18, 2026
- June 11, 2026: Main Capital retains the Mansour Law Group, APLC ("MLG") to represent all Cross-Defendants
- June 18, 2026: Fourth Status Hearing. Counsel Luke Sinkinson fails to appear due to a calendaring error. The Court strikes Main Capital's Answer and directs GSPurohit to seek entry of default.
- June 25, 2026: GSPurohit files a Request for Entry of Default, which is entered by the clerk.

- July 15, 2026: GSPurohit serves the Request for Entry of Default via email to MLG.
- July 22, 2026: Main Capital promptly files and serves the Motion to Set Aside Default.

The decision is grounded in the sworn declaration of attorney Luke Sinkinson, who attested that Main Capital had retained his firm on June 11, 2026, but due to his sole calendaring error, he failed to appear at the June 18, 2026 representation status hearing [Tejeda Decl.pdf]. Consequently, the Court struck Main Capital's previously filed Answer and ordered default proceedings.

CCP §473(b) provides that the court may relieve a party from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect within six months after judgment, dismissal, order, or proceedings has been taken. In the absence of an attorney affidavit of fault, the burden is on the moving party to show that the default could not have been avoided through the exercise of ordinary care. *Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58.

C.C.P. section 473(b) also provides discretionary relief, stating: "[t]he court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." In ruling on motions brought under the discretionary provision of section 473(b), the general policy favors granting relief and a trial on the merits. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.) When relief is sought promptly and there is no prejudice to the other side, even a weak showing will suffice. (*Ibid*)

The court is empowered to relieve a party "upon such terms as may be just... from a judgment, dismissal, order or other proceeding taken against him or her through his or her mistake, inadvertence, surprise or excusable neglect." (C.C.P. §473(b).) C.C.P. §473(b) contains two different avenues for relief. Under the first part of §473(b), a party is entitled to relief from any "judgment, dismissal, order or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect."

Under California law, relief is mandatory when a timely application is accompanied by an attorney's affidavit of fault, even if the neglect is inexcusable. The Court further finds that the motion was timely made within one month of the entry of default and that the opposing party, GSPurohit Properties, LLC ("GSPurohit"), suffers no prejudice because the individual principals (Juan and Janet Tejeda) remain active litigants in the case.

To compensate GSPurohit's counsel for the time directly occasioned by this calendaring error, the Court imposes a compensatory sanction against Main Capital/Counsel of \$960.00.

Compensatory Sanction Breakdown

Pursuant to Code of Civil Procedure Section 473(b), the Court directs Main Capital's counsel to pay \$960.00 to Lieberg Oberhansley LLP within thirty (30) days [Tejeda Reply.pdf, Tejeda oppo.pdf]. This amount is broken down as follows:

1. Appearances and Preparation: 1.0 hour of attorney time at \$300.00 per hour, totaling \$300.00.
2. Opposition & Motion Work: 2.0 hours of attorney time at \$300.00 per hour, totaling \$600.00.
3. Filing Fees: Reimbursement of GSPurohit's motion filing fees in the amount of \$60.00.